

Mutual Non-Disclosure Agreement

Starter template — review before use.

This agreement is between the two parties named below. Each of them expects to share information with the other that is not public, and each agrees to look after the other party's information on the terms set out here.

FIRST PARTY NAME

FIRST PARTY COMPANY

SECOND PARTY NAME

SECOND PARTY COMPANY

EFFECTIVE DATE

1. What counts as confidential information

Anything one party shares with the other that is marked confidential, or that a sensible person would understand to be private, is confidential information. Plans, pricing, customer lists, designs, source code and unreleased work are all included, whether they are shared on paper, by email or out loud.

2. What is not covered

Information that is already public without either party being at fault, that the receiving party already held before it was shared, that it works out independently without using the other party's information, or that somebody else passes on lawfully and without restriction.

3. How each party may use it

Only to consider or carry out the work the parties are discussing. Neither party sells, publishes or passes on the other's confidential information, and neither uses it to compete with the party that shared it.

4. Who may see it

Only the people who need it for that purpose — employees, directors and professional advisers — and only where they are already under a duty of confidence at least as strict as this one. Each party stays responsible for the people it shares with.

5. How long the duty lasts

Each party keeps the other's confidential information private for three years from the day it was shared, and protects it with at least the same care it uses for its own confidential material.

6. Returning or deleting it

On written request, each party returns or deletes what it holds, apart from copies kept automatically in routine backups and anything either party has to keep by law. Copies kept that way stay confidential under this agreement.

7. No transfer of ownership, no warranty

Sharing information gives the receiving party no ownership of it and no licence beyond the purpose above. Neither party promises that the information it shares is accurate or complete.

8. Ending this agreement

Either party may end this agreement by giving the other 30 days written notice. The duty of confidence in clause 5 carries on for information shared before it ended.

Each party confirms that the person signing below is authorised to sign for it.

FIRST PARTY SIGNATURE

SECOND PARTY SIGNATURE

DATE SIGNED

DATE SIGNED
